IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 106
CA-(CAA)-13/ND/2023

IN THE MATTER OF:
Fortis Emergency Services Limited and ... Applicant/Petitioner
Fortis Hospitals Limited

Under Section: 230-232

Order delivered on 02.06.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ **SH. L. N. GUPTA**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:
For the Applicant : Adv. Gopal Jain, Adv. Arunav Roy

ORDER

The Applicants have filed the affidavit as directed in terms of the order dated 09.05.2023. In terms of the affidavits, there is an indication regarding the pendency of certain proceedings qua some of the Applicants. Our attention could be drawn to the fact that an FIR could be registered against the ex-subscribers/promoter qua Applicant No. 2. Nevertheless, the copy of the FIR is not before us. In the circumstances of the case, we deem it appropriate to call for the comments/report of RD qua the first motion application as well as the affidavits filed by the Applicants before us.

Issue notice to RD returnable on 21.07.2023. Ld. Counsel appearing for the Applicant undertakes to serve notice upon RD through all modes viz. registered post, speed post and E-mail. Affidavit of service be filed within 3 days. Along with the notice, the Applicant would also enclose a copy of the petition as also a copy of the affidavit filed in compliance of the order dated 09.05.2023. The Applicants may also place a copy of the FIR registered against the ex-promoter of Applicant No. 2 on record within one week.

The RD would ensure the filing of the report before the next date of hearing.

List on 21.07.2023.

-Sd-

(L. N. GUPTA)
MEMBER (T)

-Sd-

(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

UPASANA